

The Companies (Registration of Charges) Rules, 2014

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Union of India - Act

The Companies (Registration of Charges) Rules, 2014

UNION OF INDIA

India

The Companies (Registration of Charges) Rules, 2014

Rule THE-COMPANIES-REGISTRATION-OF-CHARGES-RULES-2014 of 2014

Published on 31 March 2014

Commenced on 31 March 2014

[This is the version of this document from 31 March 2014.]

[Note: The original publication document is not available and this content could not be verified.]

The Companies (Registration of Charges) Rules, 2014

Published vide Notification No. G.S.R. 248(E), dated 31st March, 2014

Last Updated 16th May, 2019

Ministry of Corporate Affairs

G.S.R. 248(E). - In exercise of the powers conferred under Sections 77, 78, 79, 81, 82, 83, 84, 85, 87 read with Section 469 of the Companies Act, 2013 (

18 of 2013

) and in supersession of the Companies (Central Government's) General Rules and Forms, 1956 or any other relevant rules prescribed under the Companies Act, 1956 (1 of 1956) on matters covered under these rules, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Companies (Registration of Charges) Rules, 2014.

(2)

They shall come into force on the 1st day of April, 2014.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Companies Act, 2013 (

18 of 2013

);

(b)

"Annexure" means the Annexure appended to these rules;

(c)

"Fees" means the fees as specified in the Companies (Registration offices and fees) Rules, 2014;

(d)

"Form" or "eforms" means form set forth in Annexure to these rules which shall be used for the matter to which it relates;

(e)

"Regional Director" means the person appointed by the Central Government in the Ministry of Corporate Affairs as a Regional Director;

(f)

"section" means the section of the Act.

(2)

Words and expressions used in these rules but not defined and defined in the Act or in Companies (Specification of definitions details) Rules, 2014 shall have the meanings respectively assigned to them in the Act and said rules.

3.

Registration of creation or modification of charge.

(1)

For registration of charge as provided in subsection (1) of Section 77, Section 78 and Section 79, the particulars of the charge together with a copy of the instrument, if any, creating or modifying the charge in Form No.CHG-1 (for other than Debentures) or Form No.CHG-9 (for debentures), as the case may be, duly signed by the company and the charge holder [shall be filed]

[Substituted 'and filed' by Notification No. G.S.R. 614(E), dated 5.7.2018 (w.e.f. 31.3.2014).]

with the Registrar within a period of thirty days of the date of creation or modification of charge along with the fee.

(2)

[If the particulars of a charge are not filed in accordance with sub-rule (1), such creation or modification shall be filed in Form No. CHG-1 or Form No. CHG-9 within the period as specified in section 77 on payment of additional fee or advalorem fee as prescribed in the Companies (Registration Offices and Fees) Rules, 2014.

(3)

Where the company fails to register the charge in accordance with sub-rule (1) and the registration is effected on the application of the charge-holder, such charge-holder shall be entitled to recover from the company the amount of any fees or additional fees or advalorem fees paid by him to the Registrar for the purpose of registration of charge.]

[Substituted by Notification No. G.S.R. 342(E), dated 30.4.2019 (w.e.f. 31.3.2014).]

(4)

A copy of every instrument evidencing any creation or modification of charge and required to be filed with the Registrar in pursuance of Section 77, 78 or 79 shall be verified as follows-

(a)

where the instrument or deed relates solely to the property situated outside India, the copy shall be verified by a

certificate issued either under the seal of the company, or under the hand of any director or company secretary of the company or an authorized officer of the charge holder or under the hand of some person other than the company who is interested in the mortgage or charge;

(b)

where the instrument or deed relates, whether wholly or partly, to the property situated in India, the copy shall be verified by a certificate issued under the hand of any director or company secretary of the company or an authorized officer of the charge holder.

4.

[Application to Registrar.

[Substituted by Notification No. G.S.R. 342(E), dated 30.4.2019 (w.e.f. 31.3.2014).]

(1)

For the purposes of the first proviso and clause (b) of the second proviso to sub-section (1) of section 77, the Registrar may, on being satisfied that the company had sufficient cause for not filing the particulars and instrument of charge, if any, within a period of thirty days of the date of creation of the charge including modification thereto, allow the registration of the same after thirty days but within the period as specified in the said provisos, on payment of fee, additional fee or advalorem fee, as may be applicable, as prescribed in the Companies (Registration Offices and Fees) Rules, 2014.

(2)

The application under sub-rule (1) shall be made in Form No.CHG-1 and Form No.CHG-9 supported by a declaration from the company signed by its company secretary or a director that such belated filing shall not adversely affect the rights of any other intervening creditors of the company.]

5.

Application of rules in certain matters.

- The provisions of rule 4 shall apply, mutatis mutandis, to the registration of charge on any property acquired subject to such charge and modification of charge under Section 79 of the Act.

6.

Certificate of registration.

(1)

Where a charge is registered with the Registrar under sub-section (1) of Section 77 or section 78, he shall issue a certificate of registration of such charge in Form No.CHG-2

(2)

Where the particulars of modification of charge is registered under section 79, the Registrar shall issue a certificate of modification of charge in Form No. CHG-3

(3)

The certificate issued by the Registrar under sub-rule (1) and sub-rule (2) shall be conclusive evidence that the requirements of Chapter VI of the Act and the rules made thereunder as to registration of creation or modification of charge, as the case may be, have been complied with.

7.

Register of charges to be kept by the Registrar.

(1)

The particulars of charges maintained on the Ministry of Corporate Affairs portal (www.mca.gov.in/MCA21) shall be deemed to be the register of charges for the purposes of Section 81 of the Act.

(2)

The register shall be open to inspection by any person on payment of fee.

8.

Satisfaction of charge.

- [(1) A company or charge holder shall within a period of three hundred days from the date of the payment or satisfaction in full of any charge registered under Chapter VI, give intimation of the same to the Registrar in Form No. CHG-4 along with the fee.]

[Substituted by Notification No. G.S.R. 614(E), dated 5.7.2018 (w.e.f. 31.3.2014).]

(2)

Where the Registrar enters a memorandum of satisfaction of charge in full in pursuance of Section 82 or 83, he shall issue a certificate of registration of satisfaction of charge in Form No.CHG-5.

9.

Intimation of appointment of Receiver or Manager.

- The notice of appointment or cessation of a receiver of, or of a person to manage, the property, subject to charge, of a company shall be filed with the Registrar in Form No. CHG.6 along with fee.

10.

Company's register of charges.

(1)

Every company shall keep at its registered office a register of charges in Form No. CHG.7 and enter therein particulars of all the charges registered with the Registrar on any of the property, assets or undertaking of the company and the particulars of any property acquired subject to a charge as well as particulars of any modification of a charge and satisfaction of charge.

(2)

The entries in the register of charges maintained by the company shall be made forthwith after the creation, modification or satisfaction of charge, as the case may be.

(3)

Entries in the register shall be authenticated by a director or the secretary of the company or any other person authorized by the Board for the purpose.

(4)

The register of charges shall be preserved permanently and the instrument creating a charge or modification thereon shall be preserved for a period of eight years from the date of satisfaction of charge by the company.

11.

Register open for inspection.

- The register of charges and the instrument of charges kept by the company shall be open for inspection-

(a)

by any member or creditor of the company without fees;

(b)

by any other person on payment of fee.

12.

[Rectification in register of charges on account of omission or misstatement of particulars in charge previously recorded and extension of time in filing of satisfaction of charge.

[Substituted by Notification No. G.S.R. 342(E), dated 30.4.2019 (w.e.f. 31.3.2014).]

- The Central Government may on an application filed in Form No. CHG-8 in accordance with section 87 –

(a)

direct rectification of the omission or misstatement of any particulars, in any filing, previously recorded with the Registrar with respect to any charge or modification thereof, or with respect to any memorandum of satisfaction or other entry made in pursuance of section 82 or section 83,

(b)

direct extension of time for satisfaction of charge, if such filing is not made within a period of three hundred days from the date of such payment or satisfaction.]

{]

[Form No. CHG-1]

[Substituted by Notification No. G.S.R. 342(E), dated 30.4.2019 (w.e.f. 31.3.2014).]

[Pursuant to sections 77, 78 and 79 and

pursuant to Section 384 read with 77, 78 and 79 of the Companies

Act, 2013 and Rule 3 of the Companies (Registration of

Charges) Rules 2014]

Application for registration of creation,

modification of charge (other than those related to debentures)

including particulars of modification of charge by Asset

Reconstruction Company in terms of Securitization and
Reconstruction of Financial Assets and Enforcement of Securities
Interest Act, 2002 (SARFAESI)

Form languageEnglishHindi

Refer the instruction kit for filing the form.

1.

(a)

*Corporate identity number (CIN) or foreign company registration number (FCRN) of the company

{|

|

|}

(b)

Global location number (GLN) of company

{|

|}

2.

(a)

Name of the company

{|

|-

|

| (b)

| Address of the registered office or principal place of business in India of the company

|-

|

|

|-

|

| (c)

| email ID of the company

|

|}

3.

(a)

* This form is for registration of
Creation of chargeModification of charge

(b)

Charge ID of the charge to be modified

{|

|}

4.

* Whether the applicant isThe companyThe charge holder

{|

|}

5.

(a) *Date of the instrument creating or modifying the charge

(b)

*Nature, description and brief particulars of the instrument(s) creating or modifying the charge

{|

|-

|

| (c)

| *Whether charge is created or modified outside IndiaYesNo

|}

6.

(a)

Whether charge is modified in favour of asset reconstruction company (ARC) or assigneeYesNo

(b)

Whether charge holder is authorized to assign the charge as per the charge agreementYesNo

7.

Type of charge

* (a) A charge on

{|

Uncalled share capital

Calls made but not paid

Immovable property or any interest therein

Movable property

Floating charge

Motor Vehicle (Hypothecation)

Any property for securing the issue of secured deposits

Goodwill

Patent

Licence under a patent

Trade mark

Copyright

Book debts

Ship or any share in a ship

Solely of Property situated outside India

Others

|}

(b)

If others, specify

{|

|}

8.

(a)

* Whether consortium finance is involvedYesNo

If yes, enter Lead Banker's name

(b)

* Whether joint charge is involvedYesNo

(c)

* Number of charge holder(s)

(d)

* Whether charges rankpari passuYesNoRanks of the charge holder(s)

{|

Rank

Charge holder

|-

|

| (Note: Please attach a complete list of charge holders,

details of their extent to the charge, particulars of property charged, amount secured etc.)

}

9.

Particulars of the charge holder (in case charge is modified in favour of ARC or assignee, enter the particulars of ARC or assignee)

Category

{

|

|

| If others, specify

|

|

|

}

Name

{

|

|

| In case of others, specify

}

CIN, if applicable

*Name

{

}

Address * Line I

{

|

|

| Line II

|

}

* City

{

}

* State

{

| * ISO country code

|

}

Country

{

}

*Pin code

{

}

*e-mail id

{

}

* Whether charge holder is having a valid Income Tax PAN YesNo

Income tax-Permanent Account Number (PAN)

BSR Code/ Branch Code

10.

(a)

*Amount secured by the charge (in Rs.)

(In case the amount is in foreign currency, rupee equivalent to be stated)

(In case of modification/ rectification of charge, enter the amount secured by the charge after such modification)

(b)

Amount secured by the charge in words

{|

|-

|

| (c)

| In case amount secured by the charge is in foreign currency, mention details

|-

|

|

|

|}

11.

Brief particulars of the principal terms and conditions and extent and operation of the charge

(a)

Date of Creating Security Interest by actual/ constructive deposit of title deeds within bank/ housing finance company

{|

(DD/MM/YYYY)

|-

| (b)

| Borrower's customer/ account number

|

|-

| (c)

| *Rate of interest

|

|-

| (d)

| Repayment term (in months)

|

|-

| (e)

| *Terms of Repayment

|

|-

| (f)

| Nature of facility

|

|-

| (g)
| Date of Disbursement
(DD/MM/YYYY)
(h)
Miscellaneous narrative information
-
(i)
*Margin
-
(j)
*Extent and operation of the charge
-
(k)
Others
}
}

12.

In case of acquisition of property, subjected to charge, furnish the details relating to the existing charge on the property so acquired

(a)
Date of instrument creating or evidencing the charge
(b)
Description of the instrument creating or evidencing the charge

{
(c)
Date of acquisition of the property
-
(d)
Amount of the charge (in Rs.)
-

| (e)
Particulars of the property charged
}
}

13.

* Short particulars of the property or asset(s) charged (including complete address and location of the property)
Plot Unit Dwelling Interest

{|

Evaluated Price of Asset as on Security interest Creation date

Nature of Property

Plot ID number

Survey number/ Gate number etc.*

Street Number and Name

Sector/ Block Number

Locality

Landmark

Village/Town

Taluka

District

State

Pin Code

*Latitude

*Longitude

Area of plot (Square feet/ Square meter, Acre, Gunta, Cents, Hectares)

Evaluated Price of Asset as on Security interest Creation date

Nature of Property

Plot ID number

Survey number/Gate number*

Dwelling Unit ID Number

Floor No.

Building Name & Society Name

Street Name / No.

Sector/ Block Number

Locality

Landmark

Village/Town Name

Taluka

District

State

Pin Code

*Latitude

*Longitude

Area of dwelling (Square feet,Sq. Meter)

Bounded by

By North

By South

By East

By West

}]

*Survey number, GAT number, Khesra number; khweta number, Mouza number, Phase number or any other such similar representation in various states or union territories can be captured in this field.

(All the fields should be captured as appearing in the revenue record, flat no, house no, Municipal Office/ Municipal Corporation/ Grampanchayat are to be specified and also the area of the immovable property as well as boundaries)

14.

Description of document by which the borrower/third party acquire title

Number of title documents deposited by customer

|

{|

Document type

Document Number

Sub-registrar

Taluka

District

State

Country code

Pin Code

|}

15.

(a)

*Whether any of the property or interest therein under
reference is not registered in the name of the companyYesNo

(b)

If yes, name of the person in whose name it is registered

{|

|}

16.

* Date of creation/ last modification prior to the present
modification

{|

|}

17.

Particulars of the present modification (please ensure that the correct particulars are entered as the same shall be
displayed in the certificate of modification of charge)

{|

|}

Attachments

List of attachments

(1)

*Instrument(s) of creation or modification of charge;

{|

|-

| (2)

| Instrument(s) evidencing creation or
modification of charge in case of acquisition of property which
is already subject to charge together with the instrument
evidencing such acquisitions;

|-

| (3)

| Particulars of all joint charge holders;

|-

| (4)

| Optional attachments, if any

|-

|

|

|

|}

Declaration

I am authorized by the Board of Directors of the

Company vide resolution number ** dated to sign this form and declare that all the requirements of Companies Act, 2013 and the rules made thereunder in respect of the subject matter of this form and matters incidental thereto have been complied with. I also declare that all the information given herein above is true, correct and complete and as per the attached charge instrument(s) or document(s) and nothing material has been suppressed. A copy of the attached charge instrument(s) or document(s) is/ are available at the registered office or principal place of business in India of the company.

I further declare that:

(a)

the delay in filing the particulars of creation/modification, was accidental or due to inadvertence or some other sufficient cause and are or is not of a nature to prejudice the position of the charge holder, shareholders or creditors of the company;

(b)

no prejudice would be caused to the charge holder(s) or any other creditor(s) of the company, if the delay is condoned;

(c)

the company has not created or modified any other charge(s) whatsoever on the assets of the company, since the creation/ modification of the present charge, for which the application for condonation of delay is being filed;

(d)

the company is carrying on the business as on the date of filing this application and no proceedings to wind-up the company have commenced or are pending against the company;

(e)

there is no litigation proceedings pending before any court of law for which condonation of delay is being filed;

(f)

the company has not applied for striking off the name of the company from the register of Registrar of Companies

To be digitally signed by

Director or manager or secretary or CEO or CFO

(In case of an Indian company) or an authorized representative

(In case of a foreign company)

Designation

DIN of the director; PAN of the manager or CEO

or CFO or authorized representative; or membership number of company secretary

Declaration

I/we confirm that the attached charge instrument(s) or document(s) is/ are true copies of the original which is/ are available with the charge holder and/or assignee and all the information and particulars mentioned above are derived there from are concisely and correctly stated. I/we am/are duly

authorized to sign this form.

I/we am/ are a multilateral/ International

financial institution who has/ have been exempted from payment of
income tax in India under the UN Privileges and Immunities Act.

To be digitally signed by

Charge Holder

PAN of the charge holder

To be digitally signed by

ARC or assignee

PAN of the ARC or assignee

Certificate by practicing professional

I declare that I have been duly engaged for the

purpose of certification of this form. It is hereby certified

that I have gone through the provisions of the Companies Act,

2013 and rules thereunder for the subject matter of this form and

matters incidental thereto and I have verified the above

particulars (including attachment(s)) from the original/

certified records maintained by the Company/ applicant which is

subject matter of this form and found them to be true, correct

and complete and no information material to this form has been

suppressed. I further certify that:

i. The said records have been properly prepared,

signed by the required officers of the Company and maintained as

per the relevant provisions of the Companies Act, 2013 and were

found to be in order;

ii. All the required attachments have been completely and legibly

attached to this form.

To be digitally signed by

Chartered accountant (in whole-time practice); or

Cost accountant (in whole-time practice); or

Company secretary (in whole-time practice)

Whether associate or fellowAssociateFellow

Membership numberCertificate of Practice number

Note : Attention is also drawn to provisions of Section 447, section 448 and 449 of the Companies Act, 2013 which
provide for punishment for fraud, punishment for false statement and punishment for false evidence respectively.

For office use only:

eForm Service request no. (SRN)

eForm filing date

(DD/MM/YYYY)

Digital signature of the authorizing officer

This e-Form is hereby registered

Date of signing

(DD/MM/YYYY)

Or

This eForm has been taken on file maintained by the registrar of companies through electronic mode and on the basis of
statement of correctness given by the filling company

l}

Form No. CHG-2

Certificate of registration of charge

[Pursuant to sections 77(1) and 78 of the Companies Act, 2013 and sub-rule (1) of 6 of the Companies (Registration of
Charges) Rules, 2014]

Corporate identity number (CIN) or foreign company registration number of the company (FCRN) of the company:
GLN:

Name of the company:

Charge Identification No.:

This is to certify that pursuant to the provisions contained in Chapter VI of the Companies Act, 2013, the above mentioned charge dated the _____ day of _____ two thousand _____, created by the above named company/, on behalf of the company in favour of _____ to secure the amount of _____ rupees has been registered and assigned a Charge Identification Number as mentioned above in the Register of Charges, in accordance with the provisions contained in that behalf in Chapter VI of the said Act.

Given under my hand and seal, at(place), this _____ day of _____ two thousand _____.

Registrar of Companies

.....

Form No. CHG-3

Certificate of registration of modification of charge

[Pursuant to section 79(b) of the Companies Act 2013 and sub-rule (2) of rule 6 of the Companies (Registration of Charges) Rules, 2014

Corporate identity number (CIN) or foreign company registration number (FCRN) of the company:

Name of the company:

Charge Identification No.:

This is to certify that pursuant to the provisions contained in Chapter VI of the Companies Act 2013, the above charge dated the Day of 20... created in favour of to secure the amount of Rs. _____ has been modified in the following manner:

Brief particulars of the modification: (as appearing in Form No. 6.1 filed for modification of charge)

and the above modification has been registered and assigned a Charge Identification Number as mentioned above in the Register of Charges, in accordance with the provisions contained in that behalf in Chapter VI of the said Act.

Given under my hand at (place), this _____ day of _____ two thousand _____.

Registrar of Companies

.....

{|

[Form No. CHG-4]

[Substituted by Notification No. G.S.R. 1218(E), dated 18.12.2018 (w.e.f. 31.3.2014).]

Particulars for satisfaction of charge thereof

[Pursuant to section 82(1) of the Companies

Act, 2013 and Rule 8(1) of the Companies (Registration of Charges) Rules, 2014]

Form languageEnglishHindi

Refer the instruction kit for filing the form.

1.

(a)

*Corporate identity number (CIN) or foreign company registration number (FCRN) of the company

{|

|

|}

(b)

Global location number (GLN) of company

{|

|}

2.

(a)

Name of the company

{|

|-

|

| (b)

| Address of the registered office or principal place of business in India of the company

|-

|

|

|-

|

| (c)

| email ID of the company

|

]|

3.

* This form is for registration of Satisfaction of charge

4.

(a)

* Whether the form is being filed (i) Beyond 30 days but within 300 days from the date of satisfaction Yes No

If yes, give reasons for the delay and mention the duration of delay

{|

|-

|

| (ii)

| Beyond 300 days Yes No

|-

|

| (b)

| * Whether the applicant is Company Charge holder

]|

5.

* Whether charge is satisfied in favour of asset reconstruction company (ARC) or assignee Yes No

* Charge creation identification (ID) number

6.

(a)

* Particulars of the charge holder or ARC or Assignee

* Name of charge-holder

In case of others,

CIN, if applicable

Name

{|

|-

|

| Address

|

|-

|

| *e-mail ID

|

|}

(b)

Particulars of creation of original charge and subsequent modifications

(i)

Charge creation date(DD/MM/YYYY)

(ii)

Charge last modified date(DD/MM/YYYY)

(iii)

*Final amount secured

(In case the amount is in foreign currency, rupee equivalent to be stated) (in Rs.)

(iv)

Amount secured by the charge in words

{|

|-

|

|

| (v)

| In case amount secured by the charge is in foreign currency, mention details

|-

|

|

|

|}

7.

*Date of Satisfaction of charge in full

{|

|}

Attachments

List of attachments

1.

* Letter of the charge holder stating that the amount has been satisfied;

2.

Optional attachment(s) - if any

Declaration

I am authorized by the Board of Directors of the Company vide resolution number dated *to sign this form and declare that all the requirements of Companies Act, 2013 and the rules made thereunder in respect of the subject matter of this form and matters incidental thereto have been complied with. I also declare that all the information given herein above is true, correct and complete and as per the attached charge instrument(s) or document(s) and nothing material has been suppressed.

I further declare that :

1.

the delay in filing the particulars of

satisfaction, was accidental or due to inadvertence or some other sufficient cause and are or is not of a nature to prejudice the position of the charge holder, shareholders or creditors of the company;

2.

no prejudice would be caused to the charge holder(s) or any other creditor(s) of the company, if the delay is condoned;

3.

the company has not created or modified any other charge(s) whatsoever on the assets of the company, since the satisfaction of the present charge, for which the application for condonation of delay is being filed;

4.

the company is carrying on the business as on the date of filing this application and no proceedings to wind-up the company have commenced or are pending against the company;

5.

there is no litigation proceedings pending before any court of law for which condonation of delay is being filed;

6.

the company has not applied for striking off the name of the company from the register of Registrar of Companies

To be digitally signed by

Director or manager or company secretary or CEO or CFO (in case of an Indian company)

or an authorized representative (in case of a foreign company)

Designation

DIN of the director; or PAN of the manager or CEO or CFO or authorized representative; or Membership number of the company secretary

{|

|}

Declaration

I/ we confirm that the attached charge instrument(s) or document(s) is/ are true copies of the original which is/ are available with the charge holder and/ or assignee and all the information and particulars mentioned above are derived there from are concisely and correctly stated. I/ we am/ are duly authorized to sign this form.

I/ we am/ are a multilateral/ International financial institution who has/ have been exempted from payment of income tax in India under the UN Privileges and Immunities Act.

*To be digitally signed by

Charge Holder (financial institution or bank or debenture holder etc.)

PAN

Email ID

To be digitally signed by

ARC or assignee

PAN

Email ID

To be digitally signed by

PAN

Designation

Email ID

Certificate by practicing professional

I declare that I have been duly engaged for the purpose of certification of this form. It is hereby certified that I have gone through the provisions of the Companies Act, 2013 and rules thereunder for the subject matter of this form and matters incidental thereto and I have verified the above particulars (including attachment(s)) from the original/ certified records maintained by the Company/ applicant which is subject matter of this form and found them to be true, correct and complete and no information material to this form has been suppressed. I further certify that:

i.

The said records have been properly prepared, signed by the required officers of the Company and maintained as per the relevant provisions of the Companies Act, 2013 and were found to be in order;

ii. All the

required attachments have been completely and legibly attached to this form.

To be digitally signed by

Chartered accountant (in whole-time practice) or

Cost accountant (in whole-time practice) or

Company secretary (in whole-time practice)

Whether associate or fellowAssociateFellow

Membership numberCertificate of Practise number

Note : Attention is also drawn to provisions of Section 447, section 448 and 449 of the Companies Act, 2013 which provide for punishment for fraud, punishment for false statement and punishment for false evidence respectively.

For office use only:

eForm Service request no. (SRN)

eForm filing date

(DD/MM/YYYY)

Digital signature of the authorizing officer

This e-Form is hereby registered

Date of signing

(DD/MM/YYYY)

OR

This eform has been taken on file maintained by the registrar of companies through electronic mode and on the basis of statement of correctness given by the filling company

l}

Form No. CHG-5

Memorandum of satisfaction of charge

Section 82/83 of the Companies Act 2013 and sub-rule (2) of rule 8 of the Companies (Registration of Charges) Rules, 2014

1. (a) Corporate identity number (CIN) or foreign company registration number (FCRN) of the company:

(b)

GLN

2. (a) Name of the company:

(b)

Charge Identification Number:

This is to certify that pursuant to the provisions contained in Chapter VI of the Companies Act 2013, the above charge for Rs. _____ only has been satisfied in full on day of two thousand in accordance with the provisions contained in that behalf in Chapter VI of the said Act.

Given under my hand and seal at _____ (place), this _____ day of _____ two thousand _____.

Registrar of Companies

{|

Form No. CHG. 6

Notice of appointment or cessation of
receiver or manager

[Pursuant to section 84(1) and pursuant to
Section 384 of the Companies Act, 2013 and Rule 9 of the
Companies(Registration of charges) Rules 2014]

Form languageEnglishHindi

Refer the instruction kit for filing the form.

1.

(a)

*Corporate identity number (CIN) or foreign company registration number (FCRN) of the company

{|

|

|}

(b)

Global location number (GLN) of company

{|

|}

2.

(a)

Name of the company

{|

|-

|

| (b)

| Address of the registered office or of the principal place of business in India of the company

|

|}

3.

(a)

*This notice is being filed byPerson appointing receiver or
managerPerson appointed as receiver or manager

(b)

*Type of NoticeAppointmentCessation

4.

Particulars of receiver or manager

{|

(a)

* Income-tax permanent account number (PAN)

(b)

* Name

{|

|-

| (c)

| * Address

| Line I

|

|-

|

|

| Line II

|

|-

| (d)

| * City

|

|-

| (e)

| * State

|

|-

| (f)

| * Country

|

|-

| (g)

| * Pin code

|

|}

|}

5.

*Date of appointment

{|

| (DD/MM/YYYY)

|-

| 6.

| *Date of Cessation

|

| (DD/MM/YYYY)

|-

| 7.

| *Whether the appointment or cessation is O Pursuance to an
order of court O Pursuance to any instrument

|-

| 8.

| (a) Number of charges

|

|-

|

| (b) Pursuance to an order of court

| -

|

|

Court reference

Date of Court order (DD/MM/YYYY)

Charge ID

Appointment relating to whole of the property of
the company

Appointment relating to income arising from
whole of the property of the company

YesNo

YesNo

| -

|

| (c) Pursuance to any instrument

| -

|

|

Description of instrument

Date of instrument (DD/MM/YYYY)

Charge ID

Appointment relating to whole of the property of
the company

Appointment relating to income arising from
whole of the property of the company

YesNo

YesNo

| }

Attachments

1.

* Copy of instrument appointing receiver/ manager;

{|

| -

| 2.

| * Copy of court order;

|

| -

| 3.

| List of specified property of the company in
case the appointment relates to specified property of the
company;

|

| -

| 4.

| List of specified property of the company in
case the appointment relates to income arising from specified
property of the company;

|

| -

| 5.

| Optional attachment(s), if any

|

|}

Declaration

I declare that whatever stated above is true
correct and complete and nothing material has been suppressed
including the attachments to this form. I am duly authorized to
sign this form.

To be digitally signed by

Person appointing receiver or manager

PAN

To be digitally signed by

Receiver or manager

PAN

Note: Attention is also drawn to provisions
of Section 447, section 448 and 449 of the Companies Act, 2013
which provide for punishment for fraud, punishment for false
statement and punishment for false evidence respectively

For office use only:

eForm Service request no. (SRN)

eForm filing date

(DD/MM/YYYY)

Digital signature of the authorizing officer

This e-Form is hereby registered

Date of signing

(DD/MM/YYYY)

|}

Form No. CHG-7

Register of charges

[Pursuant to section 85 sub-rule (1) of rule 10 of the Companies (Registration of Charges) Rules, 2014]

S.No

Charge ID

Date of creation of charge or date of acquisition
of property subject to charge

Date of registration of creation of charge

Short description of the property charged

(1)

(2)

(3)

(4)

(5)

Period and amount secured by the charge

Names and addresses of the charge holder

Particulars of the terms and conditions of the
charge

Description of the instrument creating the charge

(6)

(7)

(8)

(9)

Date of modification of charge

Date of registration of modification of charge

Description of the instrument modifying the charge

Particulars of modification

(10)

(11)

(12)

(13)

Date of satisfaction

Date of registration of satisfaction

Facts and date of condonation of delay, if any

Reasons for delay in filing for registration of creation, modification or satisfaction of the charge, if any

(14)

(15)

(16)

(17)

{|

[Form No. CHG. 8]

[Substituted by Notification No. G.S.R. 342(E), dated 30.4.2019 (w.e.f. 31.3.2014).]

[Pursuant to section 77(1) read with 87 of

The Companies Act, 2013 and rule 12 of The Companies

(Registration of charges) Rules 2014]

Application to Central Government for

extension of time for filing particulars of registration of

satisfaction of charge OR for

rectification of omission or misstatement of any particular in

respect of creation/ modification/ satisfaction of charge

Form languageEnglishHindi

Refer the instruction kit for filing the form.

1.

(a)

*Corporate identity number (CIN) or foreign company registration number (FCRN) of the company

{|

|

}|

(b)

Global location number (GLN) of company

{|

|

2.

(a)

Name of the company

{|

|-

|

| (b)

| Address of the registered office or principal place of business in India of the company

|-

|

|

|-

|

| (c)

| email ID of the company

|

|}

3.

* This form is for condonation of

Delay in

registration of

Satisfaction of

Charge

Omission or

misstatement of any particular in respect of

Creation of

Charge

Modification

of Charge

Satisfaction

of Charge

4.

*The application is made by Company Any other interested

person

5.

*SRN of relevant form Form CHG - 1 Form CHG - 4 Form CHG -

9

6.

Charge identification number(ID)

7.

(a)

*Date of creation/ modification/ satisfaction of charge

entered in the relevant form

(b)

*Amount of charge created/ modified/ satisfied

(c)

*Name(s) of the charge holder(s)

(d)

*Particulars of the property or asset(s) charged (including

complete address and location of the property)

{|

|-

| 8.

| *Reasons for delay/ omission/ misstatement in filing

|-

|

|

|-

| 9.

| *Details of omission/ misstatement and the relief required

|-

|

|
|}
Attachment(s)
List of attachments
1.
*Instrument creating/ modifying/ satisfying the charge;
{
2.
Letter of authorisation (in case of Authorized
Representative of a foreign company);
-
3.
Copy of resolution of the Board authorizing the
filing of the application and appointing the authorized
representative, if any;
-
4.
Affidavit;
-
5.
Confirmation from the Charge-holder;
-
6.
Balance Sheet and Annual Return of financial
year in which form was filed for which rectification is done (if
completed);
-
7.
Optional attachment, (if any)
}
Declaration(if applicant is company)
{
}
do solemnly declare that I am the (Drop down:
values-director or manager or company secretary or CEO or CFO or
an authorized representative);
and it is further declared that
1.
the delay in filing the particulars of satisfaction or omission or misstatement of any particulars with respect to
creation/modification/satisfaction, was accidental or due to inadvertence or some other sufficient cause and are or is not
of a nature to prejudice the position of the charge holder, shareholders or creditors of the company;
2.

no prejudice would be caused to the charge holder(s) or any other creditor(s) of the company, if the delay is condoned or omission or misstatement is rectified;

3.

the company has not created or modified any other charge(s) whatsoever on the assets of the company, since the creation / modification of the present charge, for which the application for condonation of delay is being filed;

4.

the company is carrying on the business as on the date of filing this application and no proceedings to wind-up the company have commenced or are pending against the company;

5.

there is no litigation proceedings is pending before any court of law for which condonation of delay is being filed;

6.

the company has not applied for striking off the name of the company from the Register of Registrar of Companies.

To be digitally signed by

Director or manager or company secretary or CEO

or CFO (In case of an Indian company) or an authorized

representative (In case of a foreign company)

Designation

DIN of the director; or DIN or PAN of the

manager or CEO or CFO or authorized representative; or Membership

number of the company secretary

{|

|}

Declaration(if applicant is any person

other than the company)

I confirm that the delay in filing the

particulars of creation/ modification/ satisfaction or omission

or misstatement, was accidental or due to inadvertence or some

other sufficient cause and are or is not of a nature to prejudice

the position of the charge holder, shareholders or creditors of

the company and all the information and particulars mentioned

above are concisely and correctly stated.

To be digitally signed by

Charge Holder

PAN

To be digitally signed by

ARC or assignee

PAN

To be digitally signed by

Designation

PAN

Note : Attention is also drawn to provisions

of Section 447, Sections 448 and 449 of the Companies Act, 2013

which provide for punishment for fraud, punishment for false

statement and punishment for false evidence respectively

For office use only:

eForm Service request number (SRN)

eForm filing date

(DD/MM/YYYY)

Digital signature of the authorizing officer

This e-Form is hereby approved

This e-Form is hereby rejected

Date of signing

(DD/MM/YYYY)

}

{

[Form No. CHG-9]

[Substituted by Notification No. G.S.R. 342(E), dated 30.4.2019 (w.e.f. 31.3.2014).]

[Pursuant to sections 71(3), 77, 78 &

79 and pursuant to Section 384 read with 71(3), 77, 78 and 79 of

The Companies Act, 2013 and Rule 3 of The Companies (Registration
of Charges) Rules, 2014]

Application for registration of creation or
modification of charge for debentures or rectification of
particulars filed in respect of creation or modification of
charge for debentures

Form languageEnglishHindi

Refer the instruction kit for filing the form.

1.

(a)

*Corporate identity number (CIN) or foreign company registration number (FCRN) of the company

}

|

}

(b)

Global location number (GLN) of company

}

}

2.

(a)

Name of the company

}

|

|

| (b)

| Address of the registered office or of the principal place of business in India of the company

|

|

|

| (c)

| e-mail ID of the company

|

}

3.

(a)

*This form is forCreation of chargeModification of
chargeRectification of charge

(b)

*Type of debenturesDebenturesDebenture StockBondAny other instrument

(c)

SRN of the form for which rectification is being filed

(d)

Charge ID of the charge to be modified or rectified

(e)

SRN of form INC-28

(f)

Rectification to be made in regard to

{|

Type of debentures

Number of trustees or debenture holders

Particulars related to series of debentures

Particulars related to present issue of series

Amount secured by charge

Description/ Particulars of property charged

Principal terms and conditions, extent and operation of charge

Extent of charge

Particulars of commissions, allowances or discount

|-

| 4.

| (a)

| *Whether the applicant is Company Trustee of debenture holders or charge holder

|-

| 5.

| * Number of trustee(s) of debenture-holders or charge-holder(s)

|-

|

| Particulars of the trustee of debenture holders or charge holder (in case charge is modified in favour of ARC or assignee, enter the particulars of ARC or assignee)

|}

Name

{|

|-

|

| In case of others, specify

|-

|

| CIN, if applicable

|

|-

|

| *Name

|

|}

Address * Line I

{|

|-

|

| Line II

|

|}

* City

{|

|}

* State

{|

|}

*ISO Country code

{|

|}

*Country

{|

|}

*Pin code

{|

|}

*e-mail id

{|

|}

*Whether trustee of debenture holder or charge holder is

having a valid Income Tax PANYesNo

Income tax-Permanent Account Number (PAN)

BSR Code/ Branch Code

6.

* Date of creation of charge

{|

| (DD/MM/YYYY)

|}

7.

Whether the charge is forEntire series of debenturesAny

issue in a series of denentures

8.

(a)

Whether the series of debentures are registered with the

Registrar of Companies (RoC)YesNo

(b) If yes,

(i)

The total amount secured by the whole series (in Rs.)

{|

|

|-

|

|

| (ii)

| Date of registration of series

|

| (DD/MM/YYYY)

|}

9.

(a)

*Date of present issue of series

{|

| (DD/MM/YYYY)

}}

(b)

*Amount of present issue of series (amount secured by the charge) (in Rs.)

{|

}}

(in case of modification of charge, enter the amount secured by the charge after such modification)

(c)

Amount secured by the charge in words

{|

}}

10.

* Date of resolution authorising the issue of the series

{|

| (DD/MM/YYYY)

}}

11.

(a)

*Description of the property charged indicating whether it a charge on

{|

Uncalled share capital

Calls made but not paid

Immovable property or any interest therein

Movable property

Floating charge

Motor Vehicle (Hypothecation)

Any property for securing the issue of secured deposits

Goodwill

Patent

Licence under a patent

Trade mark

Copyright

Book debts

Ship or any share in a ship

Solely of Property situated outside India

Others

}}

(b)

If others, specify

(c)

*Particulars of the property charged (including location of the property)

Plot Unit Dwelling Interest

Evaluated Price of Asset as on Security interest Creation date

Nature of Property

Plot ID number

Survey number/ Gate number etc.*

Street Number and Name

Sector/ Block Number

Locality

Landmark

Village/Town

Taluka

District

State

Pin Code

*Latitude

*Longitude

Area of plot (Square feet/ meter, Acre, Gunta, Cents, Hectares)

Evaluated Price of Asset as on Security interest Creation date

Nature of Property

Plot ID number

Survey number/Gate number*

Dwelling Unit ID Number

Floor number

Building Name and Society Name

Street number and name

Sector/ Block Number

Locality

Landmark

Village/Town Name

Taluka

District

State

Pin Code

*Latitude

*Longitude

Area of dwelling (Square feet/ meter)

Bounded by

By North

By South

By East

By West

*Survey number, GAT number, Khesra number; khweta number, Mouza number, Phase number or any other such similar representation in various states or union territories can be captured in this field.

(All the fields should be captured as appearing in the revenue record, flat no, house no, Municipal Office/ Municipal Corporation/ Gram panchayat are to be specified and also the area of the immovable property as well as boundaries)

12.

*Brief of the principal terms and conditions, (including rate of interest, date of redemption and creation of debenture redemption reserve) extent and operation of charge

{

(a)

Date of Creating Security Interest by actual/ constructive deposit of title deeds within bank/ housing finance company

{

(DD/MM/YYYY)

|-

| (b)
| Borrower's customer/ account number

|

|-

| (c)
| *Rate of interest

|

|-

| (d)
| Repayment term (in months)

|

|-

| (e)
| *Terms of Repayment

|

|-

| (f)
| Nature of facility

|

|-

| (g)
| Date of Disbursement
| (DD/MM/YYYY)

|-

| (h)
| Miscellaneous narrative information

|

|-

| (i)
| *Margin

|

|-

| (j)
| *Extent and operation of the charge

|

|-

| (k)
| Others

|

|}

|}

13.
*Particulars as to amount or rate percent of the
commission, allowances or discount (if any) paid, or made either
directly or indirectly by the company to any person(s) in
consideration of their subscribing or agreeing to subscribe,
whether absolutely or conditionally, or procuring or agreeing to
procure subscriptions, whether absolute or conditional, for any
of the debentures included in this return.

{|

|}

Modification of charge

14.

(a)

* Whether charge modified in favour of asset reconstruction company (ARC) or assignee YesNo

(b)

Whether trustee of debenture holders or charge holder is authorised to assign the charge YesNo

15.

(a)

*Description of the instrument modifying the charge

{|

|}

(b)

* Date of instrumental modifying the charge

{|

| (DD/MM/YYYY)

|}

16.

*Particulars of the present modification

(Please ensure that correct particulars are entered as the same shall be displayed in the certificate of modification of charge)

{|

|-

| 17.

| Description of the document by which the company acquired the title

|-

|

| Number of title documents deposited by customer

|}

|

{|

Document type

Document Number

Sub-registrar

Taluka

District

State

Country code

Pin Code

|}

Attachment(s)

List of attachments

(1)

Copy of resolution authorising the issue of debenture series;

{|

|-

| (2)

| *Instrument(s) of creation or modification of charge;

|

| -

| (3)

| Order of the Central Government for rectification of charge;

|

| -

| (4)

| Optional attachments, if any

|

| -

|

| }

Declaration

I am authorized by the Board of Directors of the
Company vide resolution number *dated *to sign this form and
declare that all the requirements of Companies Act, 2013 and the
rules made thereunder in respect of the subject matter of this
form and matters incidental thereto have been complied with. I
also declare that all the information given herein above is true,
correct and complete and as per the attached charge instrument(s)
or document(s) and nothing material has been suppressed. A copy
of the attached charge instrument(s) or document(s) is/ are
available at the registered office or principal place of business
in India of the company.

I further declare that:

(a)

the delay in filing the particulars of
creation/ modification, was accidental or due to inadvertence or
some other sufficient cause and are or is not of a nature to
prejudice the position of the charge holder, shareholders or
creditors of the company;

(b)

no prejudice would be caused to the charge
holder(s) or any other creditor(s) of the company, if the delay
is condoned;

(c)

the company has not created or modified any
other charge(s) whatsoever on the assets of the company, since
the creation/ modification of the present charge, for which the
application for condonation of delay is being filed;

(d)

the company is carrying on the business as on
the date of filing this application and no proceedings to wind-up
the company have commenced or are pending against the company;

(e)

there is no litigation proceedings pending
before any court of law for which condonation of delay is being
filed;

(f)

the company has not applied for striking off the
name of the company from the register of Registrar of Companies

To be digitally signed by

Director or manager or secretary or CEO or CFO (In case of an
Indian company) or an authorised representative (In case of a
foreign company)

Designation

DIN of the director; PAN of the manager or CEO or CFO or
authorised representative; or membership number of company
secretary

Declaration

I/ we confirm that the attached charge
instrument(s) or document(s) is/ are true copies of the original
which is/ are available with the charge holder and/or assignee
and all the information and particulars mentioned above are
derived there from are concisely and correctly stated. I/ we am/
are duly authorised to sign this form.

I/ we am/ are a multilateral/ International
financial institution who has/ have been exempted from payment of
income tax in India under the UN Privileges and Immunities Act.

* To be digitally signed by

Trustee of debenture holders or Charge Holder

PAN

To be digitally signed by

ARC or assignee

PAN

To be digitally signed by

Designation

PAN

Certificate by Practising professional

I declare that I have been duly engaged for the
purpose of certification of this form. It is hereby certified
that I have gone through the provisions of the Companies Act,
2013 and rules thereunder for the subject matter of this form and
matters incidental thereto and I have verified the above
particulars (including attachment(s)) from the original/certified
records maintained by the Company/ applicant which is subject
matter of this form and found them to be true, correct and
complete and no information material to this form has been
suppressed. I further certify that:

- i. The said records have been properly prepared, signed by the
required officers of the Company and maintained as per the
relevant provisions of the Companies Act, 2013 and were found to
be in order;
- ii. All the required attachments have been completely and legibly
attached to this form.

Chartered accountant (in whole-time practice); or

Cost accountant (in whole-time practice); or

Company secretary (in whole-time practice)

Whether associate or fellow Associate Fellow

Membership number Certificate of Practice number

Note: Attention is also drawn to provisions
of Section 447, section 448 and 449 of the Companies Act, 2013
which provide for punishment for fraud, punishment for false
statement and punishment for false evidence respectively

For office use only:

eForm Service request number (SRN)

eForm filing date

(DD/MM/YYYY)

Digital signature of the authorizing officer

This e-Form is hereby registered

Date of signing

(DD/MM/YYYY)

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Related AI tags, queries and research notes

Translation